

Relevant here, the statute that previously permitted courts to conduct IDCs and toll the 45-day deadline was repealed as of January 1, 2023. (See Code Civ. Proc., § 2016.080.) In that light, even though the *Guidelines* suggest an automatic stay, the law appears fairly clear that the 45-day deadline is mandatory and jurisdictional. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410; *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745 [“The failure to make this motion within the specified period constitutes a waiver of any right to compel a further discovery response.”].)

While some departments may consider the inherent control over complex discovery as a basis to continue allowing such an automatic stay, this department – pursuant to its *Department CMO* – declined to follow that lead. The discovery statutes are clear that the only means for an extension of the 45-day deadline is by the parties mutually agreeing in writing to the extension. The statutes and case law do not appear, in this Court’s estimation, to permit a court to unilaterally stay or extend that deadline. This is precisely the reason why the *Department CMO* deviates from the *Guidelines* in this respect.

Finally, the Court notes that, even if the motions were timely, they appear mostly moot: Defendant served supplemental discovery responses to SROG1, numbers 2 and 3, as well as to RFP1, numbers 1, 2, 4, and 6-9, and produced 175 pages of documents. (Schnayerson Decl., ¶11, Exh. C.) In the reply, Plaintiff acknowledges this. Plaintiff also states that Defendant might produce additional information that could resolve the motions in their entirety.

11. *Serna v. QQ Service Corp., et al*, Case No. CIVSB2605711

Defendants’ Motion to Compel Further Responses to Form Interrogatories, Set One
Plaintiff’s Motion to Compel Further Responses to Requests for Production, Set Two
9/9/26, 9:00 a.m., S-17

CONTINUE the matter to allow satisfaction of the meet-and-confer requirements.

Here, Defendants Ayala and Alan Lem & Co, Inc. have moved for further response to their first set of Form Interrogatories (FROG1). Scheduled for hearing on this same date, Plaintiff moved for further response to its second set of Requests for Production (RFP2). Neither motion has satisfied the meet-and-confer requirement.

Prior to discovery motion, a party is required meet and confer “in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (See Code Civ. Proc., § 2016.040 [emphasis added]; also Code Civ. Proc., §§ 2030.300 [interrogatories] & 2031.310 [RFPs].)

Here, the supporting documents assert only that the counsel wrote each other. (See, e.g., Jackson Decl., ¶¶4-6 [letter and two emails]; Innabi Decl., ¶¶7-11 [emails].) It does not appear that the parties met and conferred in person, by telephone, or by video conference, as required by Code. The Court will require supplemental declarations confirming satisfaction of the Code prior to the next hearing date.
